

**IN THE PROCUREMENT REVIEW COMMITTEE
BALOCHISTAN PUBLIC PROCUREMENT REGULATORY AUTHORITY**

PRC Appeal No. 07/2025

**M/S Grow International Consulting Private Limited
Through Mr. Aljaz Ahmed,
(Authorized Representative)**

..... APPELLANT

Versus

- 1. The Government of Balochistan,
Through Its Secretary, Labour & Manpower Department, Civil Secretariat Quetta.**
- 2. The Chairman, Complaint Redressal Committee / Additional Secretary, Labour & Manpower
Department, Civil Secretariat, Quetta,**
- 3. The Managing Director, B-TEVTA, Quetta.**
- 4. The Director MIS, B-PPRA, Quetta.**

..... RESPONDENTS

Quorum:

- 1. Mr. Habib Ur Rahman JamotChairman PRC**
- 2. Mr. Mubashir Ali Khan (FCIPS).....Member PRC**
- 3. Engr. Junaid Shah.....Member PRC**
- 4. Engr. Muhammad Ayub NasirTechnical Member PRC**
- 5. Abdul Wahab Bulledi, Advocate.....Private Member PRC**

**APPEAL UNDER RULE 56-A OF BALOCHISTAN PUBLIC PROCUREMENT RULES 2014 AGAINST THE
CRC DECISION DATED 07-07-2025 TSE No: 242504688052**

For the Appellant:

Mr. Aljaz Ahmed, Coordinator / Acting CEO.

For the Respondents:

**Mr. Abdul Ghaffar, Deputy Secretary Labour Department.
Mr. Bahad Baloch, Assistant Director B-TEVTA
Mr. Ghulam Raza Hussain, Assistant Director B-TEVTA.**

Date of Final Hearing: 30-07-2025

Decided on: 01-08-2025

PRC Appeal No. 07/2025

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JUDGEMENT

Mubashir Ali Khan (FCIPS) – Member PRC. The Appellant, by leave of this Committee has challenged the impugned act of assigning lower marks to the Appellant during the technical evaluation of bids by the Respondent.

2. Brief facts of the case are that the Appellant in capacity of a bidder participated in the electronic Tender titled "Service Required for Chief Minister's Youth Skill Development Program for Overseas Employment Balochistan Phase-II" with estimated approved budget PKR. 500,000,000/- (Five Hundred Million) advertised vide TSE No. 242504688052 on the BPPRA ePPS by the Respondent, adopting Two stage bidding procedure. The evaluation criteria were set to be the quality-cost selection method, where the weightage of quality & cost was 70% & 30 % respectively.

3. The Appellant claims his technical bid to have been incorrectly evaluated by the statutory Procurement Committee (PC) thereby depriving him from his lawful right of being awarded the said Contract notwithstanding his claimed compliance with requirements of the criteria set forth by the Respondent. Aggrieved thereby, the Appellant filed a Grievance before the statutory Complaint Redressal Committee (CRC) of the Respondent, pursuant to Rule 56 of the Balochistan Public Procurement Rules 2014 (BPPR) which was decided on 7th June 2025. The CRC has held that the Appellant is aggrieved owing to BPPRA's ePPS, which is an external factor to the Procuring Agency and, if the Appellant is not satisfied with the decision of CRC, the Appellant may approach the statutory Procurement Review Committee under BPP Rule 56-. Hence, the Appellant has invoked the jurisdiction of this Committee.

4. Learned Counsel for the Appellant, while assailing the non-responsiveness of his Client, referred to the printouts of HR documents & Audit Reports, said to be the attachments of the electronically submitted technical proposal of his client, pleaded that had the documents, presently not reflecting on the dashboard of Respondent 3, been visible, his Client would have been declared technically responsive and considered for second stage and subsequently the financial evaluation.

5. That Notices were issued to the Respondents on 18th June 2025 and this Committee directed the CRC to decide the fate of the complaint and communicate its decision to both the Appellant and BPPRA. Accordingly, the matter was adjourned for 23rd June 2025. On the said date, the Respondents were directed to file their reply and to depute well-conversant officer along with complete procurement record of the instant Electronic Tender including all attachments. The matter was then adjourned to 25th June 2025.

6. That Interim Order was granted to the Appellant vide Order Sheet dated 23-07-2025^{01/08/2025} and the Respondents were directed to file their reply. Furthermore, the Respondent No.4 was directed to submit a comprehensive report whether the bidding documents are available on BPPRA ePPS or otherwise. While the Respondent No. 3 was restrained from proceeding further into the instant case till the next date of hearing.

7. On next date of hearing, the 29th July 2025, a reply was filed by the Respondent No. 3, and the Respondent No. 4 submitted a detailed report on the context, nature, causes,

effects and the system log information of the technical issue. The portions stating the system logs, root cause and conclusion of the matter is as follows;

3. System Logs Analysis:

- *Logs show that the vendor made five separate attempts to upload documents.*
- *These entries were successfully saved in the backend database.*

4. Root Cause:

- *Due to multiple attachments under overlapping or conditional fields, the system encountered a document rendering issue.*
- *This caused the documents to not appear on either the vendor or procuring agency dashboards.*

Conclusion:

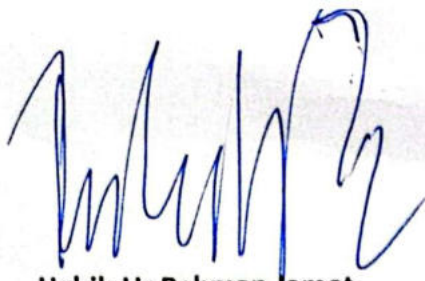
The documents exist in the system but are not rendering due to a technical issue with dynamic evaluation criteria handling”.

8. We have gone through the contents of Appeal as well as the replies filed by the Respondents and have particularly perused the report dated 29th July 2025 of Respondent No.4 which reveals that the supporting documents were uploaded by the Appellant but were not being displayed on the ePPS dashboard of the Respondent No. 3 despite their existence in the ePPS. which is purely a technical malfunction of the system and was neither on part of the Appellant nor the Respondent No. 3.

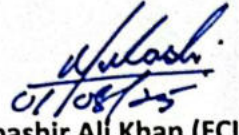
9. In view of above, the Appeal in hand is allowed and the impugned decision dated: 7th July 2025 passed by the Respondent No. 2 is set aside and the respondent No. 4 is directed to ensure visibility of the said documents on the ePPS dashboard of the Respondent No. 3 and enable reevaluation of the first stage of the bidding procedure and the Respondent No. 3 is directed to reevaluate the technical bid of the Appellant in accordance with prescribed criteria under BPP Rule 35(1) without further delay.

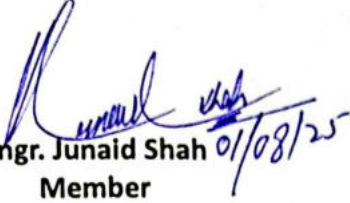
The Registrar of this Committee is directed to communicate the copy of this order to the Appellant, all Respondents and the BPPRA for information and necessary compliance.

Announced today, the 1st day of August 2025, under the seal and authority of the Procurement Review Committee


Habib Ur Rehman Jamot
Chairman
Procurement Review Committee

1/8/2025


Mubashir Ali Khan (FCIPS)
Member
Procurement Review Committee


Engr. Junaaid Shah
Member
Procurement Review Committee


Engr. Muhammad Ayub Nasir
Technical Member
Procurement Review Committee


Abdul Wahab Buledi, Advocate
Private Member
Procurement Review Committee